

[or avoidance] at the time of payment (*b*); [and this has been extended by the Conveyancing and Law of Property Act, 1881, to cases of payments or acts made or done by any person in good faith since the 31st December, 1881, and applies whether "the donor of the power has died or become lunatic, of unsound mind or bankrupt, or has revoked the power," if the fact was not known to the donee of the power at the time of exercising it (*c*).]

33. **Letters of administration.** — If a legacy to a wife be a small sum, as under 50*l.*, and the husband survives her, the Court orders payment to him without taking out letters of administration to the wife (*d*); and, on the other hand, where the wife has survived, the Court has ordered a small sum, as a legacy of 13*l.*, to which the husband was entitled, to be paid to the widow, without taking out administration to the husband (*e*). But the Court refused to order payment to the husband, without letters of administration to the wife, of a sum of 80*l.*, and remarked that the husband was not liable after the wife's death for her debts contracted before marriage, and that the fund would get into a wrong channel (*f*). Where a married woman was entitled to a small sum under 50*l.*, representing *real* estate, the Court ordered it to be paid to her without a deed of acknowledgment (*g*). It is presumed that a trustee, acting in a *similar manner under similar circumstances, [*355] would be protected by the Court.

34. **Payment to an infant.** — A testamentary guardian has, by Act of Parliament (12 Car. 2, c. 24), the "custody, tuition and management of the infant's goods, chattels, and personal estate" [and this has generally been considered as not] authorising a trustee to pay to the guardian a *capital*

(*b*) But where the title of the person giving the power determines with his life, as in the case of a husband claiming in right of his wife, the difficulty seems insurmountable. See *Re Jones*, 3 Drew. 679.

[(*c*) 44 & 45 Vict. c. 41, s. 47.]

(*d*) *Re Jones' Trusts*, 1866, W. N. p. 65; *Hinings v. Hinings*, 2 H. & M. 32; *King v. Isaacson*, 9 W. R. 369.

(*e*) *Callendar v. Teasdale*, 3 W. R. 289.

(*f*) *Re Cabel*, 3 W. R. 280, reversing S. C. 3 W. R. 84.

(*g*) *Knapping v. Tomlinson*, W. N. 1870, p. 107; *Re Clarke's Estate*, 13 W. R. 401; [*Frith v. Lewis*, W. N. 1881, p. 146.]